

26SMCV01194 26SMCV01194

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 26SMCV01194 Hearing Date: August 5, 2026 Dept: M

CASE NAME: Polvino, et al., v. Cohen, et al.

CASE

NO.: 26SMCV01194

MOTION: Motion to be Relieved

HEARING

DATE: 8/5/2026

LEGAL STANDARD

The court may order that an attorney be changed or substituted at any time before or after judgment or final determination upon request by either client or attorney and after notice from one to the other. (CCP § 284(2).) The attorney seeking to withdraw must take "reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, including giving due notice to the client, allowing time for employment of other counsel." (Cal. Rules of Prof. Conduct, 3-700(A)(2). See, e.g., Vann v. Shilleh (1975) [holding withdrawal prejudicial where attorney withdraw from the representation of defendant on the Friday before trial began the following Monday].) "The determination whether to grant or deny a motion to withdraw as counsel lies within the sound discretion of the trial court." (Manfredi & Levine v. Superior Court (1998) 66 Cal.App.4th 1128, 1133.)

An application to be relieved as counsel must be made on Judicial Counsel Form MC-051 (Notice of Motion and

Motion), MC-052 (Declaration), and MC-053 (Proposed Order). (CRC 3.1362(a), (c), (e).) The requisite forms must be served “on the client and on all parties that have appeared in the case.” (CRC, 3.1362(d).) When a client is served by mail, the attorney's declaration must indicate that the client's address was confirmed within the last 30 days and how it was confirmed. (Id.) If the attorney is unable to confirm the client's current address, the declaration must state the reasonable efforts made within the last 30 days to obtain the client's current address. (Id.)

Additionally, the declaration “must state in general terms and without compromising the confidentiality of the attorney client relationship why” a motion is brought instead of filing a substitution of attorney. (CRC, 3.1362(c).)

ANALYSIS

Counsel Ashley R. Fickel moves to be relieved as counsel of record for Plaintiffs Marisa Polvino, individually and derivatively on behalf of Straight Up Entertainment Group, LLC, and Makdoone Entertainment Corporation, derivatively on behalf of Straight Up Impact, LLC.

Counsel submits all the mandatory forms. Counsel states that an irreparable breakdown of the attorney-client relationship has occurred. Counsel served his client by mail and electronically at their last known address. However, counsel does not indicate whether these addresses were confirmed within the past 30 days. Counsel must confirm that reasonable efforts were made to confirm the addresses as current or locate a more current address for the clients before the motion will be granted. (See MC-052 ¶ 3.b(2).)

If Counsel adequately explains the efforts to confirm the addresses, then the Court would grant the motion. The motions otherwise comply with CRC Rule 3.1362. The declaration notes the hearings that are on calendar, including the arbitration status conference on March 17, 2027. Given that the case is stayed for arbitration and trial is not set, the Court does not find that the client will be prejudiced by the withdrawal.

If counsel is able to confirm the address and email address, the motion will be GRANTED. The order is effective upon the filing of the proof of service of the order on the

client. Until then, counsel remains counsel of record.